

26 Titus Avenue — the applicant's public record

Case ZBA2026-063 · research memorandum · September 11, 2026 · prepared for Nickolas Levasseur, 30 Mystic Street

Who the applicant is

The plan sheets and the application name the owner of record as follows.

Owner of record	T & L 2018, LLC, 156 Lowell Road, Hudson, NH 03051
Deed reference	Book 9788, Page 1181
Engineer / agent	Doug MacGuire, PE, of The Dubay Group, Inc., 136 Harvey Road Bldg. B101, Londonderry, NH 03053
Drawing file	The plan sheets carry the internal path <i>782-Boyer-Titus Ave, Manchester</i>

156 Lowell Road, Hudson is the business address of Boyer's Auto Body & Sales and Boyer's Truck Equipment, a family business owned by **Todd Boyer**. Three independent facts point the same way: the address given for the owner, the name embedded in the engineer's own drawing file, and the press account of the 2024 City auction, which names Todd Boyer as the buyer of a Titus Avenue lot.

Not yet confirmed. The members and managers of T & L 2018, LLC have not been verified against Secretary of State filings. The identification above rests on the three facts just listed, which is strong but is not a filing. Confirm before asserting it in a pleading.

The applicant bought this land at a public auction, as vacant land

On June 8, 2024 the City auctioned fifteen surplus properties at the JFK Coliseum, taking in roughly \$1.2 million against a combined assessed value of about \$945,500, with the proceeds going to the City's Affordable Housing Trust Fund. The sales were contingent on approval by the Board of Mayor and Aldermen's Lands and Buildings Committee, which met July 2, with purchase and sale agreements to be completed by July 23 — consistent with the July 2024 conveyance shown in the application packet.

Todd Boyer bought three of the lots, on Boynton Street, Erie Street and Titus Avenue. Asked about the auction, he was quoted saying:

"There were some decent deals today. Some of the properties were a little rough, difficult to build on, but I'm glad I got the ones I was interested in."

The same account reports that he planned **to build single-family homes** on the properties he had bought.

Why those two statements matter

Before this Board, the applicant's case rested on the proposition that the land cannot reasonably be used in conformance with the ordinance — that, as the engineer put it at the hearing, you could not get more than one or two single-family houses onto the parcel. The public record from the purchase cuts against that in two separate ways.

- Knowledge at purchase.** The buyer said at the auction itself that some of the properties were "a little rough, difficult to build on," and bought anyway. Under *Hill v. Town of Chester*, 146 N.H. 291 (2001), buying with knowledge of the restriction does not bar a variance, but it is a factor the Board may weigh, and it bears directly on whether a hardship is self-created.
- Stated intent.** The buyer's own reported plan for the lots he bought was to build single-family homes — the very use he later told the Board was not reasonably possible here. That is also what the applicant's own written memorandum and its sealed By-Right Subdivision Plan show: five conforming single-family lots.

Verify before quoting. The article groups the purchases as "these West Side properties." Boynton and Erie are on the West Side; Titus Avenue, off Calef Road, is not. The single-family intent may therefore have been said of the group generally rather than of this parcel specifically. The "difficult to build on" quotation does not carry that problem — it is about the properties he bid on, and it speaks to knowledge at the time of purchase.

A pattern before this same Board

This is not the applicant's first variance from the Manchester Zoning Board of Adjustment on land bought at that auction.

Case	ZBA2025-020, heard March 2025
Property	Erie Street (Tax Map 455, Lot 10) and Boynton Street (Tax Map 658, Lot 32A)
Relief sought	Lot line adjustment by subdivision and consolidation leaving proposed Map 455 Lot 10 with 5,570 SF of buildable land area where 7,500 SF is required — a variance from Minimum Buildable Lot Area
Result	Granted
Afterward	The subdivision went to the Planning Board on May 1, 2025, where the applicant said he would build a home for his daughter on one lot and probably for his nephew on the other

The shape of the thing is worth stating plainly. Surplus City land is bought at a discount at auction; the buyer then returns to this Board for relief from the buildable-lot-area requirement that made the land cheap. Titus Avenue is the third parcel from that auction and by far the largest ask: 49,484 SF of buildable area where 78,000 SF is required for the use proposed, or 63 percent, together with relief from five other sections of the Land Use Code.

The prior case is also the most checkable thing in this memorandum. The Board's minutes and notice of decision for March 2025 are already posted, unlike anything from the September 10, 2026 meeting, which the City has not yet published.

What should be verified next

- The deed at **Book 9788, Page 1181** — the purchase price and the exact date of conveyance, at the Hillsborough County Registry of Deeds.
- The **Secretary of State filing** for T & L 2018, LLC — members, managers and registered agent.
- The exact wording of the auction coverage, to fix whether the single-family intent was said of the Titus Avenue lot or of the group of purchases.
- The **March 2025 minutes and notice of decision** in ZBA2025-020 — what was found, and how each member voted.

Sources are listed below with full addresses so they can be checked from a printed copy. Everything in this memorandum comes from the application packet on file with the City or from published accounts; nothing here rests on private information. Statements attributed to the buyer are quoted as they were published and have not been verified against a recording.

Sources

1. [City auctions surplus properties for affordable housing trust](#)

Manchester Ink Link, June 2024 — the auction, the buyers, and Todd Boyer's quoted remarks
<https://manchester.inklink.news/city-auctions-surplus-properties-for-affordable-housing-trust/>

2. [Manchester to auction off surplus city-owned lots](#)

New Hampshire Union Leader — advance coverage of the same auction
https://www.unionleader.com/news/human_interest/manchester-to-auction-off-surplus-city-owned-lots/article_3c1086f4-16db-11ef-a9c5-1bfe709f7e8e.html

3. [Planning Board hears subdivision request of formerly public surplus property](#)

Manchester Ink Link, May 2025 — the Erie/Boynton subdivision and what the buyer said he would build
<https://manchester.inklink.news/planning-board-hears-subdivision-request-of-formerly-public-surplus-property/>

4. [March 13 Zoning Board: New housing, home improvements, and a tattoo parlor](#)

Manchester Ink Link — the hearing notice describing ZBA2025-020
<https://manchester.inklink.news/march-13-zoning-board-new-housing-home-improvements-and-a-tattoo-parlor/>

5. [Boyer's Truck Equipment, 156 Lowell Road, Hudson](#)

Business listing establishing the occupant of the address given for the owner of record
<https://www.yelp.com/biz/boyers-truck-equipment-hudson>

6. [Manchester Zoning Board of Adjustment — minutes and decisions](#)

Where the March 2025 minutes and notice of decision for ZBA2025-020 are posted
<https://www.manchesternh.gov/Departments/Planning-and-Comm-Dev/Zoning-Board/Minutes>

7. [Hillsborough County Registry of Deeds](#)

For the deed at Book 9788, Page 1181 — purchase price and date of conveyance
<https://www.nhdeeds.org/hillsborough-county-home/>